

HOUSE No. 856

The Commonwealth of Massachusetts

PRESENTED BY:

Michael J. Moran

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to reprecincting.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Michael J. Moran</i>	<i>18th Suffolk</i>	<i>1/17/2025</i>

HOUSE No. 856

By Representative Moran of Boston, a petition (accompanied by bill, House, No. 856) of Michael J. Moran relative to reprecincting. Election Laws.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to reprecincting.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 9A of chapter 9 of the General Laws, as appearing in the 2020
2 Official Edition, is hereby amended by inserting before the first paragraph the following
3 paragraph:-

4 For the purposes of this section “decennial division” shall mean the decennial division of
5 congressional, representative, senatorial and councillor districts as set forth in sections 1 through
6 7A, inclusive, of chapter 54.

7 SECTION 2. Said section 9A of said chapter 9, as so appearing, is hereby amended by
8 adding the following 7 paragraphs:-

9 The commission shall not approve the division of any city or town into wards and
10 precincts as required by chapter 54 until the final approval by the governor of the enacted
11 decennial division.

12 The commission shall minimize the approval of sub-precincts and not impose a strict
13 mathematical formula on the population deviation for municipal precincts unless the creation of
14 a sub-precinct is required to meet a plus or minus 10 per cent population deviation for municipal
15 representative districts.

16 The commission shall provide the state secretary with the meeting notice and minutes of
17 all commission meetings, which shall be posted on the secretary's website.

18 The commission shall provide the state secretary an electronic geographic information
19 system shapefile or equivalent containing the population of every city and town ward, precinct
20 and sub-precinct within the boundaries of the approved congressional, councillor, senatorial and
21 representative districts and an ASCII compatible file containing a written description of all
22 changes in the municipality, ward, precinct and county description of each approved
23 congressional, councillor, senatorial and representative districts as will be reported by the
24 secretary pursuant to section 133 of chapter 54 no later than 30 days after the final approval by
25 the governor of the enacted decennial division and shall be posted on the secretary's website.

26 The state secretary will maintain and update any subsequent changes to city and town
27 ward, precinct and sub-precinct and shall post those changes on the secretary's website.

28 The state secretary shall establish, implement and maintain an internet portal on the
29 secretary's website to display and access commission records including but not limited to
30 commission meeting notices, meeting minutes, votes approving municipal ward, precincts and
31 sub-precincts, geographic information system shapefiles of approved voting districts,
32 congressional, councillor, senatorial and representative district descriptions by municipality,
33 including ward and precinct for any municipality split into multiple representative districts, and a

complete listing of every precinct as will be reported by the secretary in public document
pursuant to section 133 of chapter 54.

The commission shall deliver to the senate president and speaker of the house of
representatives, within 7 days following the approval of all municipal wards and precincts as
required by chapter 54, an electronic geographic information system shapefile or equivalent
containing the population of every city and town ward, precinct and sub-precinct within the
boundaries of the approved congressional, councillor, senatorial and representative districts and
an ASCII compatible file containing a written description of all changes in the municipality,
ward, precinct and county description of each approved congressional, councillor, senatorial and
representative district.

SECTION 3. Section 1 of chapter 54 of the General Laws, as so appearing, is hereby
amended by striking out, in lines 1 and 2, the words “In the year 2001, and every tenth year
thereafter, no later than June fifteenth” and inserting in place thereof the words:- No later than 30
days after the final approval by the Governor of the enacted decennial division.

SECTION 4. Said section 1 of said chapter 54, as so appearing, is hereby further
amended by striking out the fourth paragraph and inserting in place thereof the following
paragraph:-

The state secretary shall assist towns by producing draft precincts for future submission
to the Local Election Districts Review Commission established under section 9A; provided,
however, that any such draft map and precincts be compiled and updated into one electronic
geographic information system shapefile or equivalent containing the population of every city

55 and town ward, precinct, and sub-precinct and shall deliver said file to the president of the senate
56 and speaker of the house of representatives and shall post the file on the secretary's website.

57 SECTION 5. Said chapter 54, as so appearing, is hereby further amended by inserting
58 after section 1 the following section:-

59 Section 1A. For the purposes of this chapter "decennial division" shall mean the
60 decennial division of congressional, representative, senatorial and councillor districts as set forth
61 in sections 1 through 7A, inclusive.

62 SECTION 6. Section 2 of said chapter 54, as so appearing, is hereby amended by striking
63 out, in lines 14 and 15, the words "on the thirty-first day of December" and inserting in place
64 thereof the following words:- 14 days prior to the state primary preceding the next biennial
65 election.

66 SECTION 7. Said section 2 of said chapter 54, as so appearing, is hereby further
67 amended by striking out the second paragraph.

68 SECTION 8. Section 5 of said chapter 54, as so appearing, is hereby amended by adding
69 the following paragraph:-

70 Every city, including those cities not subject to sections 1 through section 5, inclusive, of
71 chapter 54, shall deliver to the local election districts review commission established under
72 section 9A of chapter 9 no later than 30 days after the final approval by the governor of the
73 enacted decennial division an electronic geographic information system shapefile or equivalent
74 containing the population of every city and town ward, precinct and sub-precinct within the
75 boundaries of the approved congressional, councillor, senatorial and representative districts and

an ASCII compatible file containing a written description of all changes in the municipality, ward, precinct, and county description of each approved congressional, councillor, senatorial and representative district.

SECTION 9. Section 6 of said chapter 54, as so appearing, is hereby amended by striking out, in lines 1 and 2, the words “In the year 2001, and every tenth year thereafter, no later than June fifteenth” and inserting in place thereof the words:- No later than 30 days after the final approval by the governor of the enacted decennial division.

SECTION 10. Said section 6 of said chapter 54, as so appearing, is hereby further amended by striking out the sixth paragraph and inserting in place thereof the following paragraph:-

The state secretary shall assist towns by producing draft precincts for future submission to the Local Election Districts Review Commission established under section 9A; provided, however, that any such draft map and precincts be compiled and updated into one electronic geographic information system shapefile or equivalent containing the population of every city and town ward, precinct, and sub-precinct and shall deliver said file to the president of the senate and speaker of the house of representatives and shall post the file on the secretary’s website.

SECTION 11. Section 8 of said chapter 54, as so appearing, is hereby amended by adding the following paragraph:-

Every town including those not subject to sections 6 and section 7 shall deliver to the local election districts review commission established under section 9A of chapter 9 no later than 30 days after the final approval by the governor of the enacted decennial division an electronic geographic information system shapefile or equivalent containing the population of every city

98 and town ward, precinct and sub-precinct within the boundaries of the approved congressional,
99 councillor, senatorial and representative districts and an ASCII compatible file containing a
100 written description of all changes in the municipality, ward, precinct and county description of
101 each approved congressional, councillor, senatorial and representative districts.

102 SECTION 12. Section 9 of said chapter 54, as so appearing, is hereby amended by
103 inserting after the word “precincts;”, in line 2, the following words:- provided, that such precinct
104 is in a town the territory of which in such formation is not included in 2 or more congressional,
105 representative, senatorial or councillor districts.

106 SECTION 13. Section 9A of said chapter 54, as so appearing, is hereby amended by
107 striking out the second paragraph and inserting in place thereof the following paragraph:-

108 Any precinct established or remaining unchanged following the formation of
109 congressional, councillor, senatorial and representative districts based on the decennial federal
110 census shall remain unchanged and, if such precinct is in a town the territory of which in such
111 formation is included in 2 or more congressional, representative or senatorial districts, shall
112 remain unchanged for the purpose of electing such officers until the next decennial division.